

## Indian Polity

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### Lecture 01: Historical Background

#### HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

Several constitutional features of India have their roots in British rule. Events during British administration shaped the legal and administrative framework of modern India. The British created laws, courts, and administrative structures that later influenced the design of the Indian Constitution.

#### Historical Timeline at a Glance

| Year / Event  | Significance                                                                                                                                                        |
|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1600          | East India Company (EIC) granted charter by Queen Elizabeth I – exclusive trading rights in India                                                                   |
| 1765          | Diwani rights (revenue & civil justice) of Bengal, Bihar & Orissa granted to EIC by Mughal Emperor Shah Alam after Battle of Buxar – beginning of territorial power |
| 1773          | Regulating Act – First British law to regulate EIC; first step towards central administration                                                                       |
| 1858          | Government of India Act – British Crown assumed direct control after Revolt of 1857                                                                                 |
| 1947 (Aug 15) | India's Independence                                                                                                                                                |
| 1950 (Jan 26) | Constitution of India came into effect                                                                                                                              |

#### Two Phases of British Rule

- **Company Rule (1773-1858):** India governed by the East India Company under Parliamentary regulation.

- **Crown Rule (1858-1947):** India governed directly by the British Crown through the Viceroy and the Secretary of State for India.

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## COMPANY RULE (1773-1858)

### Regulating Act of 1773

- First step towards central administration in India.
- First British law to formally **regulate** the East India Company's activities.
- Recognised the **political and administrative role** of the Company.
- Laid the **foundation of central administration** in India.

### Key Features

- **Governor-General of Bengal Created:** Governor of Bengal elevated to Governor-General of Bengal, assisted by an Executive Council of 4 members. First Governor-General: **Lord Warren Hastings**.
- **Subordination of Presidencies:** Governors of Bombay and Madras made subordinate to Bengal. Earlier, all three Presidencies were independent.
- **Supreme Court at Calcutta (1774):** Established with 1 Chief Justice + 3 other judges. First Supreme Court in India.
- **Ban on Company Officials:** Prohibited from private trade and from accepting gifts, bribes, or presents from Indians.
- **Strengthening Crown Control: Court of Directors** (Company's governing body) required to report revenue, civil, and military affairs to British Government.

### Amending Act of 1781 (Act of Settlement)

Purpose: To remove defects in the Regulating Act of 1773, especially regarding powers and jurisdiction of the Supreme Court in Calcutta.

### Key Features

- **Jurisdictional Exemptions:** Governor-General and Council exempted from Supreme Court for official acts. Company servants also exempted for official actions.
- **Revenue Matters Excluded:** Revenue matters and revenue collection matters excluded from Supreme Court jurisdiction.
- **Scope of Court:** Court to exercise jurisdiction only over inhabitants of Calcutta; to administer personal laws – Hindus under Hindu law, Muslims under Mohammedan law.
- **Appellate Authority:** Appeals from Provincial Courts to go to Governor-General-in-Council, not the Supreme Court.
- **Regulatory Powers:** Governor-General-in-Council empowered to frame regulations for Provincial Courts and Provincial Councils.

## Pitt's India Act of 1784

It institutionalised central British control over India. Purpose: To address political instability under Company rule and create a **dual governance structure**.

### Key Features

- **Division of Functions:** Commercial functions → Court of Directors; Political functions → Board of Control. Introduced **Double Government System**.
- **Creation of Board of Control:** 6 members including Chancellor of the Exchequer and Secretary of State. Managed political affairs of the Company.
- **Supreme Control Vested in Crown:** Board of Control supervised civil and military affairs and oversaw revenue operations.
- **Two key significance:** (1) Company's possessions first officially called "British possessions in India"; (2) British Government given supreme control over Company's affairs.

## Act of 1786

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In 1786, **Lord Cornwallis** was appointed Governor-General of Bengal. His two demands: (1) Power to override his council in special cases; (2) Also be the Commander-in-Chief. The **Act of 1786** was enacted to fulfil both provisions.

## Charter Act of 1793

Renewed EIC's charter for another 20 years. No major structural changes but clarified and consolidated existing provisions.

### Key Features

- **Extension of Overriding Power:** Overriding authority earlier granted to Cornwallis now extended to all future Governor-Generals and Governors of Presidencies.
- **Increased Central Authority:** Governor-General given greater powers over Bombay and Madras Presidencies.
- **Company's Trade Monopoly Renewed:** EIC's trade monopoly in India extended for another 20 years.
- **Commander-in-Chief and Council:** Commander-in-Chief would not be member of Governor-General's Council, unless specifically appointed.
- **Board of Control Salaries from Indian Revenues:** Members of Board of Control and their staff paid out of Indian revenues.

## Charter Act of 1813

Important Act – ended EIC's trade monopoly in India.

### Key Features

- **End of Trade Monopoly:** EIC's monopoly abolished; Indian trade opened to all British merchants. Exception: EIC retained monopoly over tea trade and trade with China.
- **Sovereignty of British Crown Asserted:** British Crown held sovereignty over all Company's territories in India.
- **Christian Missionaries Allowed:** First time missionaries allowed to enter British India for religious and moral enlightenment.
- **Promotion of Western Education:** Directed efforts for Western education among people of British Indian territories.

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- **Taxation Powers to Local Governments:** Empowered Local Governments in India to impose taxes on individuals and penalise non-compliance.

## Charter Act of 1833

The final step towards **centralisation**. The most important Charter Act.

### Key Features

- **Governor-General of India Created:** Elevated Governor-General of Bengal to **Governor-General of India**, vested with all civil and military powers across British India. First time Government of India had authority over entire British territory in India. **Lord William Bentinck** became the first Governor-General of India.
- **Centralisation of Legislative Powers:** Took away legislative powers from Governors of Bombay and Madras. Gave Governor-General of India exclusive legislative authority over all of British India. Laws made earlier called 'Regulations'; those made under this Act called '**Acts**'.
- **End of Company's Commercial Role:** Abolished commercial functions of EIC. EIC became a purely administrative body. Company's territories in India held "in trust for His Majesty, His heirs and successors."
- **Attempt to Introduce Open Civil Services:** Proposed open competition for Indian civil services. Indians should not be barred from any position in Company service. However, this progressive clause was nullified by opposition from the Court of Directors.

## Charter Act of 1853

The last of the Charter Acts (1793-1853). Final Charter Act passed by British Parliament before the Revolt of 1857. Company's rule extended without a fixed tenure.

### Key Features

- **Separation of Executive and Legislative Functions:** For the first time, legislative and executive functions of Governor-General's Council separated. Six new **legislative councillors** added. This led to the creation

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of Governor-General's Legislative Council (also called Indian Central Legislative Council) – functioned like a mini-Parliament.

- **Open Competition for Civil Services:** Introduced open competitive system for civil services. Covenanted civil service opened to Indians. Led to the **Macaulay Committee (1854)** (Committee on the Indian Civil Service).
- **No Fixed Tenure for Company Rule:** Unlike earlier Charter Acts, no fixed period mentioned – Parliament could terminate Company rule at any time.
- **Introduction of Local Representation:** First time local (provincial) representation introduced in Indian Legislative Council. Of the six new legislative members, four were nominated by provincial governments of Madras, Bombay, Bengal, and Agra.

## CROWN RULE (1858-1947)

### Government of India Act of 1858

Also known as the **Act for the Good Government of India**. Enacted in response to the **Revolt of 1857** (First War of Independence / Sepoy Mutiny). Formally began the British Crown's direct rule in India.

#### Key Features

- **Transfer of Power from Company to Crown:** EIC abolished. Powers related to governance, territories, and revenues transferred to the British Crown. India governed in the name of Her Majesty.
- **Creation of Viceroy's Office:** Title of Governor-General changed to **Viceroy of India**. The Viceroy became the direct representative of the British Crown. **Lord Canning** became the first Viceroy of India.
- **Abolition of Double Government:** Board of Control and Court of Directors were abolished. Ended the dual structure established by Pitt's India Act (1784).

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- **Secretary of State for India:** New post created. Member of British Cabinet. Held complete authority over Indian administration. Ultimately responsible to the British Parliament.
- **Council of India:** A **15-member Council of India** established to assist the Secretary of State. Advisory body. Secretary of State was its Chairman. Declared a corporate entity – could sue and be sued in India and England.
- The Act was largely confined to improving the administrative machinery in England for supervising India. It did not substantially alter the system of government in India itself.

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## Indian Councils Act of 1861

Marked a shift in British policy – from rule by exclusion to **limited Indian association in governance**. First of three 'Council Acts' (1861, 1892, 1909) that gradually introduced representative institutions.

### Key Features

- **Introduction of Legislative Representation:** For the first time, Indians were associated with the law-making process. Viceroy empowered to nominate non-official Indian members. In 1862, Lord Canning nominated: Raja of Benaras, Maharaja of Patiala, and Sir Dinkar Rao.
- **Beginning of Decentralisation:** Act restored legislative powers to Bombay and Madras Presidencies. Reversed earlier trend of centralisation (1773-1833). This policy of legislative devolution eventually led to provincial autonomy under GOI Act 1935.
- **Provision for New Legislative Councils:** Empowered establishment of legislative councils in Bengal (1862), North-Western Provinces (1886), and Punjab (1897).
- **Legal Recognition to 'Portfolio System':** Portfolio System introduced by Lord Canning in 1859 was officially recognised. Each member of Viceroy's council given charge of a department. Could issue final orders on matters within his department without full council discussion.

- **Ordinance-Making Power to Viceroy:** Viceroy authorised to issue ordinances during emergencies without legislative council's concurrence. Validity of such ordinances: **six months**.

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## Indian Councils Act of 1892

A modest constitutional reform expanding Indian participation in governance. Followed increasing political demands including those of early **Indian National Congress (founded 1885)**. Introduced indirect elections – the term 'election' was not used; framed as nomination based on recommendations.

### Key Features

- **Expansion of Legislative Councils:** Increased non-official members in both Central and Provincial Legislative Councils. Officials still retained majority.
- **Enlarged Legislative Functions:** Councils could now discuss annual budgets (without power to vote on them) and ask questions to the executive on matters of public interest.
- **Nomination Based on Recommendations:** At Central level – Viceroy nominated members on recommendation of provincial legislative councils and Bengal Chamber of Commerce. At Provincial level – Governors nominated members on recommendation of district boards, municipalities, universities, trade associations, zamindars, and chambers of commerce.

## Indian Councils Act of 1909 (Morley-Minto Reforms)

Named after **Lord Morley** (Secretary of State for India) and **Lord Minto** (Viceroy of India).

### Key Features

- **Expansion of Legislative Councils:** Central Legislative Council – members increased from 16 to 60. Provincial Councils – size increased (varied by province).
- **Composition:** Official majority retained in Central Legislative Council. Non-official majority allowed in Provincial Legislative Councils.

- **Enhanced Deliberative Powers:** Members could ask supplementary questions, move resolutions on the budget, and discuss matters of public interest.
- **Special Representation:** Separate representation given to Presidency Corporations, Chambers of Commerce, Universities, and Zamindars.
- **Introduction of Communal Representation:** This Act marked the **beginning of communal representation** in Indian politics. Separate electorate for Muslims introduced – Muslims could vote only for Muslim members. Sowed the seeds of communalism in Indian politics.

The reforms were still restrictive and controlled, prompting further nationalist demands.

## Government of India Act, 1919 (Montagu-Chelmsford Reforms)

Named after **Edwin Montagu** (Secretary of State for India) and **Lord Chelmsford** (Viceroy of India).

On 20 August 1917, British Government declared: "The policy of His Majesty's Government is the progressive realisation of responsible government in India as an integral part of the British Empire." The 1919 Act was a response to this declaration. It came into effect in 1921.

### Key Features

- **Division of Subjects – Centre vs Province:** All administrative subjects divided into Central subjects (defence, foreign affairs, etc.) and Provincial subjects. Done through 'Devolution Rules'. Both Central and Provincial Legislatures could legislate on their respective lists. Overall structure remained centralised and unitary.
- **Dyarchy in Provinces:** Provincial subjects further divided into: (a) **Transferred subjects:** public health, education, agriculture, local self-government – administered by Ministers responsible to provincial legislatures; (b) **Reserved subjects:** police, justice, land revenue, finance – retained by Governor and Executive Council, not responsible to legislature. This double-government system was called **Dyarchy** (from

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Greek di-arche = double rule). Dyarchy proved ineffective and faced criticism.

- **Bicameralism & Direct Elections at Centre:** Indian Legislative Council replaced by: Upper House – **Council of State**; Lower House – **Legislative Assembly**. Majority of members chosen through direct elections – first in Indian constitutional history.
- **Indianisation of Executive Councils:** Out of 6 members (excluding Commander-in-Chief) of Viceroy's Executive Council, 3 were to be Indians.
- **Extension of Communal Electorates:** Separate electorates extended to Sikhs, Indian Christians, Anglo-Indians, and Europeans.
- **Limited Franchise:** Right to vote based on property, tax, education, or other qualifications. Only a small fraction of Indians got voting rights.
- **High Commissioner for India:** Created office of High Commissioner for India in London. Transferred certain functions from the Secretary of State for India.
- **Public Service Commission:** Provided for establishment of a Public Service Commission. Central Public Service Commission set up in **1926** (precursor to today's UPSC).
- **Separate Provincial Budgets:** For the first time, provincial budgets separated from the Central Budget. Provincial legislatures authorised to enact their own budgets.
- **Statutory Commission:** Provision for a Statutory Commission to review working of the Act after 10 years. Led to formation of the **Simon Commission in 1927** (arrived in 1928).
- **Chamber of Princes (Narendra Mandal):** Established in 1921. 120 members: Princes of 108 states + 12 representatives of other states. Headed by the Viceroy. Consultative body for matters concerning Indian princely states.

Overall assessment: A major constitutional step towards self-government but fell short of Indian expectations. Introduced dyarchy, communalism, and limited

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democracy. Paved the way for more intense nationalist movements and demands for complete self-rule.

## SIMON COMMISSION (1927)

Per the 1919 GOI Act, a Statutory Commission was to be appointed after 10 years. But the British Government appointed it **2 years early** in November 1927.

### Composition

- 7 Members, all British MPs.
- **Chairman: Sir John Simon.**
- **Not a single Indian** was included – this enraged all Indian political parties.

### Indian Response

- Boycotted by all Indian political parties – slogan: **"Simon Go Back!"**
- Widespread protests; violent incidents and police repression.
- **Lala Lajpat Rai** was brutally lathi-charged during a protest in Lahore and later succumbed to his injuries – became a martyr.

### Recommendations of the Commission (Submitted 1930)

- Abolition of Dyarchy in provinces.
- Extension of responsible government to provinces.
- Establishment of an all-India Federation comprising British Indian provinces and Princely States.
- Continuation of separate electorates, i.e., communal representation.

To consider these recommendations, the British Government held three **Round Table Conferences (1930-32)**. A White Paper on Constitutional Reforms was prepared, reviewed by a Joint Select Committee of the British Parliament, and its modified recommendations were used to draft the **Government of India Act, 1935**.

## COMMUNAL AWARD (1932) AND POONA PACT

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Announced in August 1932 by British PM Ramsay MacDonald.

### Key Provisions of the Communal Award

- Reaffirmed separate electorates for Muslims, Sikhs, Indian Christians, Anglo-Indians, and Europeans.
- Extended separate electorates to **Depressed Classes (Scheduled Castes)** for the first time.

### Gandhi's Opposition and the Poona Pact (1932)

- Mahatma Gandhi opposed separate electorates for Depressed Classes – feared it would permanently divide Hindu society.
- He undertook a **fast unto death** in Yerawada Jail (Poona) to protest this provision.

**Poona Pact (1932)** was an agreement between Mahatma Gandhi (on behalf of Congress) and **Dr. B.R. Ambedkar** (representing Depressed Classes).

### Key Terms of the Poona Pact

- Separate electorates for Depressed Classes were **withdrawn**.
- Instead, **reserved seats** given to the Depressed Classes within the general (Hindu) electorate system (joint electorate).
- Depressed Classes could vote with Hindus, but had reserved representation.

The British Government accepted the Poona Pact and modified the Communal Award accordingly (only in relation to Scheduled Castes). These modified provisions were incorporated into the Government of India Act, 1935.

## GOVERNMENT OF INDIA ACT, 1935

Second milestone towards responsible government in India. Most extensive British Act on Indian governance: **321 Sections and 10 Schedules**. Basis for many provisions in the Indian Constitution.

### Key Features

- **All-India Federation**: Federation of British provinces + princely states.  
Three-fold division of powers: Federal List (59 subjects – Centre),

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Provincial List (54 subjects – Provinces), Concurrent List (36 subjects – both). Residuary powers vested in Viceroy. The Federation never came into being because princely states did not join.

- **Provincial Autonomy:** Dyarchy in provinces ended. Provinces became autonomous units. Governor to act with advice of ministers responsible to provincial legislature. Came into effect in 1937; withdrawn in 1939 after Congress ministries resigned.
- **Dyarchy at the Centre:** Federal subjects split into reserved and transferred. Never implemented.
- **Bicameralism in Provinces:** Introduced in 6 out of 11 provinces: Bengal, Bombay, Madras, Bihar, Assam, and United Provinces. Each had a Legislative Council (Upper House) and Legislative Assembly (Lower House). Legislatures remained under many restrictions.
- **Representation for Depressed Classes:** Reserved general seats for Scheduled Castes. Special representation extended to women and labour.
- **Council of India Abolished:** Replaced; Secretary of State for India now advised by a team of advisors.
- **Franchise Extension:** Voting rights extended to approximately 14% of the population, based on property, tax, and education.
- **Reserve Bank of India:** Established as the central bank to manage currency and credit.
- **Public Service Commissions:** Creation of Federal PSC, Provincial PSCs, and Joint PSCs.
- **Federal Court:** Established in 1937 to adjudicate Centre-Province and inter-provincial disputes (precursor to the Supreme Court of India).
- **Burma Separated:** Burma (now Myanmar) was separated from India.
- **New Provinces:** Creation of Orissa and Sind as separate provinces.
- **Minority Safeguards:** Special provisions to protect interests of minorities.
- **Federal Railway Authority:** To administer railways across India.

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- **Auditor-General of India:** Appointed to audit accounts of the federation and provinces.

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## INDIAN INDEPENDENCE ACT, 1947

### Background

- **February 20, 1947:** British PM Clement Attlee announced end of British rule in India by June 30, 1948.
- **June 3, 1947:** Announcement that any Constitution made by the Constituent Assembly (1946) would not apply to unwilling parts.
- **Mountbatten Plan (June 3, 1947):** Proposed partition of India. Accepted by INC and Muslim League. Enacted through the Indian Independence Act, 1947.

### Key Provisions

- **End of British Rule:** India declared an independent and sovereign state from 15 August 1947.
- **Partition of India:** Created two independent Dominions – India and Pakistan. Both with the right to secede from the British Commonwealth.
- **Abolition of Viceroy's Office:** Replaced by a Governor-General for each dominion, appointed by the British King on advice of respective dominion cabinets. British Government ceased to have any responsibility over India or Pakistan.
- **Constituent Assemblies Empowered:** To frame their own constitutions. To repeal any Act of British Parliament, including this Act itself.
- **Legislative Powers:** Constituent Assemblies could legislate for their dominions. No British Act post-15 August 1947 applicable unless adopted by the dominion's legislature.
- **Abolition of Secretary of State for India:** His functions transferred to Secretary of State for Commonwealth Affairs.
- **Princely States' Options:** Could join India, join Pakistan, or remain independent.

- **Interim Governance:** Dominions to be governed by GOI Act 1935 until new constitutions were enacted. Dominions could modify the 1935 Act as needed.
- **Veto Powers of British Monarch Ended:** King lost power to veto or reserve bills. Powers now vested in the Governor-General.
- **Governor-General and Governors Made Constitutional Heads:** To act on advice of Council of Ministers. Became nominal/constitutional heads.
- **Royal Title Modified:** Title "Emperor of India" removed from the British King's titles.

### At Midnight of 14-15 August 1947

- British rule formally ended.
- **Lord Mountbatten** became the first Governor-General of independent India.
- **Jawaharlal Nehru** was sworn in as the first Prime Minister of free India. He addressed a special session of the Constituent Assembly – the famous 'Tryst with Destiny' speech.
- The **Constituent Assembly (1946)** became the Dominion Parliament of India.

### Interim Government (1946)

Note: The Viceroy continued to be the head of the Council, but Jawaharlal Nehru was designated as the Vice-President of the Council.

| Sl. No. | Member                   | Portfolio Held                                                                   |
|---------|--------------------------|----------------------------------------------------------------------------------|
| 1.      | Jawaharlal Nehru         | Vice-President of the Council;<br>External Affairs and<br>Commonwealth Relations |
| 2.      | Sardar Vallabhbhai Patel | Home, Information and<br>Broadcasting                                            |
| 3.      | Dr. Rajendra Prasad      | Food and Agriculture                                                             |

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| Sl. No. | Member               | Portfolio Held          |
|---------|----------------------|-------------------------|
| 4.      | Dr. John Mathai      | Industries and Supplies |
| 5.      | Jagjivan Ram         | Labour                  |
| 6.      | Sardar Baldev Singh  | Defence                 |
| 7.      | C.H. Bhabha          | Works, Mines and Power  |
| 8.      | Liaquat Ali Khan     | Finance                 |
| 9.      | Abdur Rab Nishtar    | Posts and Air           |
| 10.     | Asaf Ali             | Railways and Transport  |
| 11.     | C. Rajagopalachari   | Education and Arts      |
| 12.     | I.I. Chundrigar      | Commerce                |
| 13.     | Ghaznafar Ali Khan   | Health                  |
| 14.     | Jogendra Nath Mandal | Law                     |

## First Cabinet of Independent India (1947)

| Sl. No. | Member                   | Portfolio Held                                                                   |
|---------|--------------------------|----------------------------------------------------------------------------------|
| 1.      | Jawaharlal Nehru         | Prime Minister; External Affairs and Commonwealth Relations; Scientific Research |
| 2.      | Sardar Vallabhbhai Patel | Home, Information and Broadcasting; States                                       |
| 3.      | Dr. Rajendra Prasad      | Food and Agriculture                                                             |
| 4.      | Maulana Abul Kalam Azad  | Education                                                                        |
| 5.      | Dr. John Mathai          | Railways and Transport                                                           |
| 6.      | R.K. Shanmugham Chetty   | Finance                                                                          |
| 7.      | Dr. B.R. Ambedkar        | Law                                                                              |
| 8.      | Jagjivan Ram             | Labour                                                                           |

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| Sl. No. | Member                      | Portfolio Held          |
|---------|-----------------------------|-------------------------|
| 9.      | Sardar Baldev Singh         | Defence                 |
| 10.     | Raj Kumari Amrit Kaur       | Health                  |
| 11.     | C.H. Bhabha                 | Commerce                |
| 12.     | Rafi Ahmed Kidwai           | Communication           |
| 13.     | Dr. Shyama Prasad Mukherjee | Industries and Supplies |
| 14.     | V.N. Gadgil                 | Works, Mines and Power  |

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## All Key Acts at a Glance

| Act / Event                      | Year | Key Significance                                                                    |
|----------------------------------|------|-------------------------------------------------------------------------------------|
| Regulating Act                   | 1773 | First law to regulate EIC; first Governor-General of Bengal; Supreme Court Calcutta |
| Amending Act (Act of Settlement) | 1781 | Exempted G-G from Supreme Court; personal laws for Hindus & Muslims                 |
| Pitt's India Act                 | 1784 | Double Government; Board of Control; 'British possessions in India'                 |
| Act of 1786                      | 1786 | Cornwallis given overriding power + Commander-in-Chief                              |
| Charter Act                      | 1793 | Overriding power extended to all G-Gs; EIC monopoly renewed 20 yrs                  |
| Charter Act                      | 1813 | EIC trade monopoly ended (except tea/China); missionaries allowed                   |
| Charter Act                      | 1833 | G-G of India created; full centralisation; EIC became admin body only               |
| Charter Act                      | 1853 | Last Charter Act; separation of exec/legis; open civil services; Macaulay Committee |
| Govt of India Act                | 1858 | EIC abolished; Viceroy created; Secretary of State for India; Crown Rule begins     |

| Act / Event                 | Year | Key Significance                                                                      |
|-----------------------------|------|---------------------------------------------------------------------------------------|
| Indian Councils Act         | 1861 | Indians in law-making; decentralisation; ordinance power; Portfolio System            |
| Indian Councils Act         | 1892 | Indirect elections; budget discussion; questions to executive                         |
| Indian Councils Act         | 1909 | Morley-Minto Reforms; communal electorate for Muslims; expansion of councils          |
| Govt of India Act           | 1919 | Montagu-Chelmsford Reforms; Dyarchy in provinces; bicameralism at Centre; CPSC 1926   |
| Simon Commission            | 1927 | All-British; boycotted; 'Simon Go Back'; led to 3 RTCs → GOI Act 1935                 |
| Communal Award & Poona Pact | 1932 | Separate electorates for SC (Communal Award); replaced by reserved seats (Poona Pact) |
| Govt of India Act           | 1935 | Federal structure; provincial autonomy; 3 lists; RBI; Federal Court; 321 sections     |
| Indian Independence Act     | 1947 | Two Dominions; end of British rule; Constituent Assemblies empowered                  |

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## GOI ACT 1935 – BLUEPRINT OF THE INDIAN CONSTITUTION

The teacher emphasised that the **Government of India Act, 1935** is the most important colonial law for UPSC because the Indian Constitution drew heavily from it.

### Provisions Borrowed from GOI Act 1935

Key features adopted from GOI Act 1935 into the Indian Constitution:

- Federal structure with division of powers (Centre, State, Concurrent Lists)
- Emergency provisions
- Scheme of Provincial/State Autonomy
- Office of Governor
- Federal Court → Supreme Court of India
- Public Service Commissions (UPSC and State PSCs)
- All-India Services
- Reserve Bank of India (RBI)

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## What Was NEW in the Indian Constitution – Not Borrowed from Colonial Acts

| Feature                                     | Source / Inspiration                                        |
|---------------------------------------------|-------------------------------------------------------------|
| Fundamental Rights                          | American Constitution (Bill of Rights)                      |
| Directive Principles of State Policy (DPSP) | Irish Constitution                                          |
| Preamble                                    | American Constitution; Nehru's Objectives Resolution (1946) |
| Parliamentary Government                    | British Constitution (Westminster model)                    |
| Emergency Provisions                        | German Weimar Constitution + GOI Act 1935                   |
| Fundamental Duties (added 1976)             | Soviet Constitution                                         |
| Adult Universal Franchise                   | Entirely new – first time for India                         |
| Republic & Sovereignty                      | Entirely new – India declared a republic                    |